

23SMCV06010 23SMCV06010

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-11

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The court is in receipt of defendant's supplemental brief filed July 23, 2026, defendant's renewed request to authenticate the Loshin letter filed July 30, 2026, plaintiff's supplemental brief filed July 29, 2026, and plaintiff's objection to defendant's authentication motion filed August 3, and defendant's reply to that objection filed August 10. The motion is essentially MOOT. The problem with the Loshin letter is not

that the court doubts its authenticity.

The court believes that defendant can establish that, and the court said

so at the trial. The problem is that it

cannot be considered for the truth of the matter of the facts asserted therein,

as that is hearsay. Loshin could testify

as to the truth of those facts, or plaintiff could concede them. But the letter itself is hearsay. Of course, that does not make defendant's

testimony hearsay about things relating to that topic, but the truth of the

facts in the letter are. (The court can

consider the letter for the fact that it was sent and that the words in it were

therefore communicated to plaintiff.)

For that reason, defendant's motion really shoots at the wrong target.

With that, briefing is now complete. The court notes a few things. First, defendant seems to be asking to

re-open the trial. That request is

DENIED. At the end of the second day,

the court asked if defendant had another witness to call. She did not and said she was done. She now means she was done for the day, but

that is not how the court understood her comment. The court understood her comment to mean that

she had presented her case and that she was resting. That was clear from the record on that date. The court very clearly then discussed how to

close things out and the parties wound up with a briefing schedule. There was no ambiguity as to whether there would be a third day of evidence. No one

suggested it. Defendant rested and the court is not going to re-open the trial at this date. Defendant also seems to indicate that the court ought to re-open because she was not mentally able to give good testimony on the day she testified. She did complain about her health that date, but the court inquired as to whether we had to adjourn the trial so that she could receive medical care and she declined. Her son was in the courtroom, and although his role was circumscribed by the court, he certainly could have spoken up if he believed his mother was in such medical distress that she was in jeopardy or he needed to take her to the hospital. He did not.

This is a UD case that was filed at the end of 2023. A normal UD case would have been fully and finally adjudicated by early to mid 2024.

This one has gone much longer.

That is because defendant contended that in fact she had title to the property and that plaintiff was, through this action, essentially seeking to divest her of title. As the court often stated, where a defendant in a UD case claims rightful title to property, the UD procedures will deny that defendant due process if the end result is an adjudication that the defendant in fact does not have title. Although that is nowhere in the statute, the case law is clear. And for that reason, this court denied plaintiff's request for a trial on the UD time line, and it did so multiple times. And as a result, the case has been going on for 2.5 years—the time line for a typical non-UD case. The court does not regret that time line, but neither does the court believe that defendant was denied her right to take whatever discovery she wanted to take, make whatever motions she wanted to make, or prepare to defend the case at trial.

The court is aware of the brief filed by defendant yesterday purporting to respond to a 3 page brief filed by plaintiff a week earlier, which objected to a declaration by defendant the Thursday before that (that is, two court days earlier). The court is not surprised. The court is not sure that there has been a single hearing in which defendant did not file a lengthy document (this one is 138 pages including 15 pages of brief and about 120 pages of exhibits) the day of or the day before the hearing. (That is probably an exaggeration, but not much of one.) That sort of thing is not fair to the other side and it is not fair to the court and the excuse that this is a reasonable response to a three page brief filed the week before is in bad

faith. Moreover, this filing is not really directed to respond to the objection to the motion relating to the Loshin letter; it is really another closing brief, complete with more evidence. The court notes that plaintiff's closing brief was filed on July 29, and that is what the court views as the last argumentative thing that plaintiff has filed that the court will consider. The court also notes that at the last ex parte, where defendant asked for more time to submit her closing brief, the court gave her more time and listed the briefs that it would accept. One of those things was a brief by defendant, which she filed on July 23 and will be considered by the court. Defendant is trying to get around that ruling by filing this last second and improper brief without so much as seeking leave of court.

Accordingly, the matter is DEEMED SUBMITTED this date. The court will issue its statement deciding the case shortly. There will be no further briefing without leave of court.

Pursuant to the court's last order, there will be no argument today.